

LA-CCRP-ART-994

ARTICLE 994 MOTION FOR INTERIM EXPUNGEMENT OF A FELONY ARREST, UNDER ARTICLE 985.1

Assigned component identity: la-985-1-interim-expungement-primary-filing-1

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA

JUDICIAL DISTRICT FOR THE PARISH OF: Parish of Saint John the Baptist

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

No.: TEST-BOUNDARY-2026-0000000000000001

Division: Division Z-Long

MOTION FOR INTERIM EXPUNGEMENT OF A FELONY ARREST FROM CRIMINAL HISTORY

La. C.Cr.P. art. 985.1, on the statutory Article 994 form composed from the committed LA-STATUTORY-FORMS authority. Article 986 makes Articles 994 and 995 the forms to be used on this track.

NOW INTO COURT comes mover, who provides the court with the following information in connection with this request. Mover moves for an interim expungement of the record of the original felony arrest identified below, pursuant to Louisiana Code of Criminal Procedure Article 985.1, and states the following in support.

This motion clears ONLY the entry of the original FELONY ARREST from the criminal history. The misdemeanor conviction that arose out of that arrest is not expunged by it and stays on the record unless it is separately cleared under Article 977.

DEFENDANT INFORMATION

Mover full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

Mover date of birth: 1968-12-31

Race:

Gender:

Last four digits of the Social Security number:

Driver's licence number:

Race and gender are printed blank on purpose. The committed manual-completion record classifies both on Articles 989 and 994 as manual completion items pending a data-protection review, so the mover writes them by hand.

THE ORIGINAL FELONY ARREST TO BE EXPUNGED

Date of the original felony arrest as it appears on the state rap sheet: 2013-12-31

Arresting law enforcement agency: Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division

How many separate charges or counts this arrest carries: Three charges on one arrest

La. R.S. statute and name of offense for each felony charge on the original arrest:

.....

.....

Those lines are the mover's own and are deliberately blank. The committed record directs that the ORIGINAL arrest charge be captured rather than the amended charge, because on this track the original felony arrest charge is the thing being expunged, and it must match the state rap sheet exactly.

Arrest or booking number shown on the state rap sheet:

SID number shown on the state rap sheet:

Arresting law enforcement item number for this arrest:

THE MISDEMEANOUR CONVICTION THAT AROSE OUT OF THAT ARREST

Misdemeanour offence the mover was convicted of out of that arrest:

.....

Date the mover was convicted of the misdemeanor: 2014-06-30

Whether the misdemeanor conviction arose out of that same original felony arrest:

Article 985.1(A) permits this interim motion for a person who was convicted of a misdemeanor offence arising out of the original felony arrest. Whether this conviction arose out of THIS arrest is the mover's own answer to give: the committed record makes it a condition on which self-help stops when it is unclear.

Whether the state rap sheet shows more than one arrest event that might be confused with this one:

The felony arrest to be expunged has to be identifiable unambiguously. Where a rap sheet conflates more than one arrest event, the committed record makes that a condition on which self-help stops.

WHAT ARTICLE 985.1 DOES NOT REQUIRE

Whether the mover has obtained an interim expungement before:

Article 985.1(D) provides that this motion is not subject to the time limitations of Article 977(A)(2) or Article 978(A)(2), so there is no waiting period, and expressly permits more than one interim expungement, so a previous one does not disqualify the mover. Article 985.1(B) makes this motion separate and distinct from expungement of a final conviction under Articles 976, 977 and 978. Article 977(C)(1) preserves interim expungement even where the misdemeanor conviction itself is barred by the sex-offence exclusion.

ARTICLE 975 - CUSTODY BAR

Whether the mover is now in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour: No

Article 975 bars a person in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour from filing. If that answer is yes, this motion may not be filed.

Date the Louisiana criminal background check was ordered: 2026-08-01

The Article 994 form requires a Louisiana criminal background check on its face, dated within the past sixty days. Order it so it is still inside that life on the day the motion is filed.

PRAYER

The mover prays that the court order the Louisiana Bureau of Criminal Identification and Information to expunge the entry of the felony charge or charges identified above from the mover's criminal history, and that the clerk of court, the district attorney and the arresting agency expunge that entry from any public indices, as the Article 995 Order of Expungement of Interim Arrest Record filed with this motion provides.

This motion clears ONLY the entry of the original FELONY ARREST from the criminal history. The misdemeanor conviction that arose out of that arrest is not expunged by it and stays on the record unless it is separately cleared under Article 977.

SIGNATURE BLOCKS

LA-CCRP-ART-994, assigned component identity la-985-1-interim-expungement-primary-filing-1

IF REPRESENTED BY COUNSEL - ATTORNEY BLOCK

Attorney name in the represented-mover block:

Attorney bar roll number in the represented-mover block:

Attorney address in the represented-mover block:

Attorney telephone in the represented-mover block:

Attorney signature in the represented-mover block:

This block is left entirely blank on this packet. This packet holds no record that the mover is represented by counsel, and an attorney block is completed by counsel or not at all.

IF NOT REPRESENTED BY COUNSEL - UNREPRESENTED MOVER BLOCK

Signature of the unrepresented mover:

Date of the mover's signature:

Printed name: Maria-Alejandra O'Shaughnessy-Whitfield

FOR THE CLERK - LEAVE BLANK

Filed on stamp applied by the clerk:

Certificate of service filed by the clerk showing the mailing date:

Article 985.1(C) applies the Article 979 et seq. procedures, so under Article 979 the clerk serves the motion on the district attorney, the Louisiana Bureau of Criminal Identification and Information and the arresting law enforcement agency, and files the certificate of service. The mover serves nobody.

LA-CCRP-ART-995

ARTICLE 995 ORDER OF EXPUNGEMENT OF INTERIM ARREST RECORD

Assigned component identity: la-985-1-interim-expungement-proposed-order-2

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA

JUDICIAL DISTRICT FOR THE PARISH OF: Parish of Saint John the Baptist

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

No.: TEST-BOUNDARY-2026-0000000000000001

Division: Division Z-Long

ORDER OF EXPUNGEMENT OF INTERIM ARREST RECORD

La. C.Cr.P. art. 995, composed from the Article 995 statutory text this packet is bound to by content digest, as Article 986(A) requires.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. The mover supplies the caption and the felony charge identifiers and nothing else on this page. Nothing here has been decided, and no relief exists unless and until a judge completes and signs it and the clerk enters it.

Considering the Motion for Expungement

.... The hearing conducted and evidence adduced herein, OR

.... Affidavits of No Opposition filed,

The election between those two alternatives is the court's.

IT IS ORDERED, ADJUDGED AND DECREED

.... THE MOTION IS DENIED for the following reasons (check all that apply):

..... Mover was not arrested for a felony.

..... Mover was not convicted of a misdemeanor offense.

Both reasons for denial are judicial findings. The court checks them if it denies the motion; the mover checks neither.

.... THE MOTION IS HEREBY GRANTED and the Louisiana Bureau of Criminal Identification and Information is hereby ordered to expunge the entry of the felony charge(s) contained in the criminal history of the above-named for the following felony charge(s):

La. R.S. :

Name of Offense

La. R.S. :

Name of Offense

Those four lines are the felony charge identifiers. They are the mover's own to complete before filing, taken from the original arrest record rather than from the charge finally convicted of, and this packet writes none of them.

IT IS FURTHER ORDERED that the Clerk of Court, District Attorney and arresting agency expunge the entry of the felony charge(s) from any public indices of the above-named on the above enumerated charge(s).

THUS ORDERED AND SIGNED

Day of the month on which the order is signed:

Month and year in which the order is signed:

Place in Louisiana at which the order is signed:

.....

JUDGE

PLEASE SERVE:

1. District Attorney

2. Louisiana Bureau of Criminal Identification and Information

3. Arresting Agency Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division

Statutory source note: Acts 2014, No. 145, Sec. 1.

la-985-1-interim-expungement-instructions-4

ARTICLE 985.1 PARTICIPANT AND FILING INSTRUCTIONS

Assigned component identity: la-985-1-interim-expungement-instructions-4

Participant full legal name on the instructions: Maria-Alejandra O'Shaughnessy-Whitfield

Interim Motion to Expunge a Felony Arrest from Criminal History (La. C.Cr.P. art. 985.1)

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield. Packet set la-985-1-interim-expungement-set, version 1.0.0.

This packet set serves 1 route(s):

- obligation:track-pathway:LA:la-985-1-interim-expungement:interim-expungement-of-a-felony-arrest-reduced-to-a-misdemeanor-conviction

What this packet clears, and what it leaves behind

This motion clears ONLY the entry of the original FELONY ARREST from the criminal history. The misdemeanour conviction that arose out of that arrest is not expunged by it and stays on the record unless it is separately cleared under Article 977.

That is the most important sentence in this packet, and the committed legal-design record requires it to be said plainly. If what you want cleared is the misdemeanour conviction itself, this is not the packet for it: that is Article 977, and it is a separate motion on a separate form.

The article this packet proceeds under, and the forms it uses

Louisiana runs separate expungement tracks off separate articles, and they are not interchangeable. This packet is the Article 985.1 interim track, and Article 986 makes the Article 994 motion and the Article 995 order the forms to be used on it. It does not use the Article 989 motion, the Article 991 order or the Article 992 order that the sibling tracks use. An arrest without conviction is Article 976, a misdemeanour conviction is Article 977, a first offence possession of marijuana is Article 977(D) on the Article 998 form, a felony conviction is Article 978, and a record naming more than one person is Article 985 redaction.

Article 985.1(A) permits an interim motion to expunge a felony arrest from the criminal history of a person who was convicted of a misdemeanour offence arising out of that original felony arrest; only the original felony arrest is expunged. Article 985.1(B) makes the interim motion separate and distinct from expungement of a final conviction under Articles 976, 977 and 978. Article 985.1(C) applies the Article 979 et seq. procedures and fees except as provided in (D), and Article 985.1(D) provides that the motion is not subject to the time limitations of Article 977(A)(2) or 978(A)(2) and permits more than one interim expungement. Article 977(C)(1) expressly preserves interim expungement even where the misdemeanour conviction itself is barred by the sex-offence exclusion. Article 986 makes Article 994 the motion form and Article 995 the order form. Confirmed against the current official text; Article 985.1 has not been amended since Acts 2014, No. 145.

The committed record lists 12 authorities for this track:

- La. C.Cr.P. art. 985.1

- La. C.Cr.P. art. 972(4)

- La. C.Cr.P. art. 977(C)(1)

- La. C.Cr.P. art. 979
- La. C.Cr.P. art. 980
- La. C.Cr.P. art. 982
- La. C.Cr.P. art. 983
- La. C.Cr.P. art. 986
- La. C.Cr.P. art. 988
- La. C.Cr.P. art. 990
- La. C.Cr.P. art. 994
- La. C.Cr.P. art. 995

What this track does that no sibling track does

- No waiting period. Article 985.1(D) disappplies the Article 977(A)(2) five-year and Article 978(A)(2) ten-year time limitations.
- No cap. Article 985.1(D) expressly permits more than one interim expungement, so a previous one does not disqualify you.
- It survives the sex-offence exclusion. Article 977(C)(1) preserves interim expungement even where the misdemeanor conviction itself is barred by that exclusion.
- It is separate and distinct. Article 985.1(B) makes this motion separate and distinct from expungement of a final conviction under Articles 976, 977 and 978, so obtaining it neither uses up nor replaces any of those.

What is in this packet

- la-985-1-interim-expungement-primary-filing-1 - Article 994 Motion for Interim Expungement of a Felony Arrest, under Article 985.1 (primary_filing, required).
- la-985-1-interim-expungement-proposed-order-2 - Article 995 Order of Expungement of Interim Arrest Record (proposed_order, required).
- la-985-1-interim-expungement-instructions-4 - Article 985.1 Participant and Filing Instructions (instructions, required).

The Article 995 order in this packet is composed from the Legislature's own text of Article 995, bound to this packet by the content digest b90e8cc62a2762c7d52b0a2b0f712147ca2ead4703fe091e26e9927cbab71c39. Its decretal paragraphs are the statute's own words, lifted from those bytes rather than paraphrased, because Article 986(A) makes the statutory forms exclusive and Article 986(C) allows only the name of the court to vary.

What is not generated, and the condition the record states

- la-985-1-interim-expungement-fee-waiver-3 (fee_waiver, LA-CCRP-ART-988): Generated only where the participant may qualify for the Article 983(F) exemption; Article 985.1(C) applies the ordinary fee provisions. This packet does not meet that condition, so the component is not generated.

Everything the committed record requires to be in place before filing (all 15 item(s) it lists)

This list is the packet set's own. Some items are yours, some belong to the district attorney, the clerk or the judge. Every one of them is reproduced here, in the record's own words and in the record's own order, so that nothing on it reaches you shortened. Where an item describes a document this packet does not contain, or names a form this track does not use, the record's words are printed unchanged and a correction is added beneath them.

- Item 1 of 15: Obtain Louisiana criminal background check dated within the past sixty days. The Article 994 form requires it on its face. Louisiana State Police recommends the fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, ORIGINAL arrest charge, arrest number and counts - and on this track the original felony arrest charge is the thing being expunged. Order it so it is still inside its sixty-day life on the day the motion is filed.

- Item 2 of 15: Check your answer to "What felony charge or charges were you arrested for originally? Give the statute and offence name for each, taken from the arrest record rather than from the charge you were finally convicted of." against Louisiana criminal background check dated within the past sixty days, and correct the packet if they disagree.

- Item 3 of 15: Obtain Bill of information or indictment for each charge. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest.

- Item 4 of 15: Obtain Minute entry showing the final disposition. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of.

- Item 5 of 15: Obtain Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- This packet does not give you the Article 988 form. la-985-1-interim-expungement-fee-waiver-3 is conditional on the record, and the condition the record states is "Generated only where the participant may qualify for the Article 983(F) exemption; Article 985.1(C) applies the ordinary fee provisions." Article 985.1(C) applies the ordinary Article 983 fee provisions, and the Article 983(F) grounds are non-conviction grounds, so nothing establishes the condition and no Article 988 form is enclosed. Everything else the item says still applies: if you believe the exemption reaches you, ask the clerk of court or the district attorney's office for the Article 988 form and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- Item 6 of 15: Obtain Affidavit of No Opposition from each named agency. The agencies' own instrument on the Article 990 form; the Article 995 order recognises 'Affidavits of No Opposition filed' as an alternative to a hearing. LegalEase cannot prepare, complete or sign it.

- Item 7 of 15: The grant-or-deny selection, both denial-reason boxes, the date, the place and the judge's signature on the Article 995 Order - Article 995 Order of Expungement of Interim Arrest Record - the decretal section and the signature block.
- Item 8 of 15: Race and gender - Article 994 Motion, defendant information section.
- Item 9 of 15: The participant's signature and the date of signing - Article 994 Motion, unrepresented-mover signature block.
- Item 10 of 15: Every certification box and the district attorney's signature on the Article 988 form - Article 988 Motion for Fee Exemption, certification section and signature block.
- Item 11 of 15: The whole of the Article 990 Affidavit of Response - Not printed in the participant packet; described in the filing instructions only.
- Item 12 of 15: The clerk's service of the motion and of the order and judgment - Not printed in the participant packet; described in the filing instructions only.
- Item 13 of 15: The mover signs the Article 994 Motion in the block for an unrepresented mover. LegalEase leaves the signature and date blank.
- Item 14 of 15: Article 985.1(C) applies the ordinary Article 983 fee provisions, so the five-hundred-fifty-dollar cap applies, collected by the clerk at filing and non-refundable even if the motion is denied.
- Item 15 of 15: Article 983(F) through the Article 988 Motion for Fee Exemption where its grounds are met.

What you must supply before filing

Check every prefilled fact against your own court record and your background check, and correct the packet where they disagree. The blanks below are deliberately empty and are yours to complete.

Document | Blank on the document | What you must supply

LA-CCRP-ART-994 | La. R.S. statute and name of offense for each felony charge on the original arrest | the statute and the offence name for every felony charge you were arrested for **ORIGINALLY**, taken from the arrest record rather than from the charge you were finally convicted of - this is the entry being expunged, so it must match your rap sheet exactly

LA-CCRP-ART-994 | Misdemeanour offence the mover was convicted of out of that arrest | the misdemeanour offence you were convicted of out of that arrest, in the words your own court record uses

LA-CCRP-ART-994 | Whether the misdemeanour conviction arose out of that same original felony arrest | whether the misdemeanour you were convicted of arose out of that **SAME** original felony arrest

LA-CCRP-ART-994 | Whether the state rap sheet shows more than one arrest event that might be confused with this one | whether your rap sheet shows more than one arrest event that might be confused with this one

LA-CCRP-ART-994 | Whether the mover has obtained an interim expungement before | whether you have obtained an interim expungement before - Article 985.1(D) expressly permits more than one, so a previous one does not disqualify you

LA-CCRP-ART-994 | Race | your race, written as the state rap sheet writes it, so the defendant information section matches the record the Bureau holds

LA-CCRP-ART-994 | Gender | your gender, written as the state rap sheet writes it, so the defendant information section matches the record the Bureau holds

LA-CCRP-ART-994 | Last four digits of the Social Security number | the last four digits of your Social Security number, written on the form by hand at the moment you file

LA-CCRP-ART-994 | Driver's licence number | your driver's licence number, or leave it blank if you have never held one

LA-CCRP-ART-994 | SID number shown on the state rap sheet | your SID number exactly as your rap sheet prints it, or leave it blank if your rap sheet shows none

LA-CCRP-ART-994 | Arrest or booking number shown on the state rap sheet | the arrest number (ATN) exactly as your Right to Review or sheriff's background check prints it

LA-CCRP-ART-994 | Arresting law enforcement item number for this arrest | the arresting agency's item number for this arrest, from your rap sheet or the agency's own report

LA-CCRP-ART-995 | La. R.S. statute and name of offense for each felony charge on the original arrest | the statute and the offence name for every felony charge you were arrested for **ORIGINALLY**, taken from the arrest record rather than from the charge you were finally convicted of - this is the entry being expunged, so it must match your rap sheet exactly

The blanks on that list the record singles out are the **ORIGINAL** felony arrest charges and whether the misdemeanour conviction arose out of that same arrest. The first is the entry being expunged, so it must match your rap sheet exactly and must be the original arrest charge rather than the charge you were finally convicted of; the committed record says so in terms. The second is a condition on which self-help stops if it is unclear, and so is a rap sheet that conflates more than one arrest event.

What you must obtain or confirm before filing (17 item(s) held by the committed track registry)

- obtain_document (required, required before filing): Obtain Louisiana criminal background check dated within the past sixty days. The Article 994 form requires it on its face. Louisiana State Police recommends the fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, **ORIGINAL** arrest charge, arrest number and counts - and on this track the original felony arrest charge is the thing being expunged. Order it so it is still inside its sixty-day life on the day the motion is filed. Obtained from: Louisiana State Police (Right to Review) or the parish sheriff.

- confirm_answer (required, required before filing): Check your answer to "What felony charge or charges were you arrested for originally? Give the statute and offence name for each, taken from the arrest record rather than from the charge you were finally convicted of." against Louisiana criminal background check dated within the past sixty days, and correct the packet if they disagree.

- obtain_document (conditional, required before filing): Obtain Bill of information or indictment for each charge. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest. Obtained from: Clerk of court for the parish. Condition: Applies where a prosecution was instituted, so a charging instrument exists.

- obtain_document (conditional, required before filing): Obtain Minute entry showing the final disposition. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of. Obtained from: Clerk of court for the parish. Condition: Applies where the case reached a disposition on the court's minutes.

- obtain_document (conditional, required before filing): Obtain Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied. Obtained from: The district attorney's office for the parish. Condition: Applies only where the participant may qualify for the Article 983(F) fee exemption.

- This packet does not give you the Article 988 form. la-985-1-interim-expungement-fee-waiver-3 is conditional on the record, and the condition the record states is "Generated only where the participant may qualify for the Article 983(F) exemption; Article 985.1(C) applies the ordinary fee provisions." Article 985.1(C) applies the ordinary Article 983 fee provisions, and the Article 983(F) grounds are non-conviction grounds, so nothing establishes the condition and no Article 988 form is enclosed. Everything else the item says still applies: if you believe the exemption reaches you, ask the clerk of court or the district attorney's office for the Article 988 form and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- obtain_document (conditional, required before filing): Obtain Affidavit of No Opposition from each named agency. The agencies' own instrument on the Article 990 form; the Article 995 order recognises 'Affidavits of No Opposition filed' as an alternative to a hearing. LegalEase cannot prepare, complete or sign it. Obtained from: The district attorney, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency. Condition: Optional; the track does not depend on it.

- complete_field (required, required before filing): The grant-or-deny selection, both denial-reason boxes, the date, the place and the judge's signature on the Article 995 Order - Article 995 Order of Expungement of Interim Arrest Record - the decretal section and the signature block.

- complete_field (required, required before filing): Race and gender - Article 994 Motion, defendant information section.

- complete_field (required, required before filing): The participant's signature and the date of signing - Article 994 Motion, unrepresented-mover signature block.

- complete_field (required, required before filing): Every certification box and the district attorney's signature on the Article 988 form - Article 988 Motion for Fee Exemption, certification section and signature block.

- complete_field (required, required before filing): The whole of the Article 990 Affidavit of Response - Not printed in the participant packet; described in the filing instructions only.

- complete_field (required, required before filing): The clerk's service of the motion and of the order and judgment - Not printed in the participant packet; described in the filing instructions only.

- sign (required, required before filing): The mover signs the Article 994 Motion in the block for an unrepresented mover. LegalEase leaves the signature and date blank.

- pay_fee (required, required before filing): Article 985.1(C) applies the ordinary Article 983 fee provisions, so the five-hundred-fifty-dollar cap applies, collected by the clerk at filing and non-refundable even if the motion is denied.

- apply_fee_waiver (conditional, required before filing): Article 983(F) through the Article 988 Motion for Fee Exemption where its grounds are met. Condition: Applies only when the participant cannot pay the filing fee.

- serve_party (required): The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

- file (required): File the Article 994 Motion for Interim Expungement with the proposed Article 995 Order of Expungement of Interim Arrest Record with the clerk of court. Article 985.1(C) applies the procedures of Article 979 et seq. Article 986 makes Articles 994 and 995 the forms to be used.

The documents the record says you obtain and attach (5 item(s))

- Louisiana criminal background check dated within the past sixty days (required, required before filing). From: Louisiana State Police (Right to Review) or the parish sheriff. The Article 994 form requires it on its face. Louisiana State Police recommends the fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, ORIGINAL arrest charge, arrest number and counts - and on this track the original felony arrest charge is the thing being expunged. Order it so it is still inside its sixty-day life on the day the motion is filed.

- Bill of information or indictment for each charge (conditional, required before filing). From: Clerk of court for the parish. Condition: Applies where a prosecution was instituted, so a charging instrument exists. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest.

- Minute entry showing the final disposition (conditional, required before filing). From: Clerk of court for the parish. Condition: Applies where the case reached a disposition on the court's minutes. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of.

- Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney (conditional, required before filing). From: The district attorney's office for the parish. Condition: Applies only where the participant may qualify for the Article 983(F) fee exemption. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- This packet does not give you the Article 988 form. la-985-1-interim-expungement-fee-waiver-3 is conditional on the record, and the condition the record states is "Generated only where the participant may qualify for the Article 983(F) exemption; Article 985.1(C) applies the ordinary fee provisions." Article 985.1(C) applies the ordinary Article 983 fee provisions, and the Article 983(F) grounds are non-conviction grounds, so nothing establishes the condition and no Article 988 form is enclosed. Everything else the item says still applies: if you believe the exemption reaches you, ask the clerk of court or the district attorney's office for the Article 988 form and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- Affidavit of No Opposition from each named agency (conditional, required before filing). From: The district attorney, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency. Condition: Optional; the track does not depend on it. The agencies' own instrument on the Article 990 form; the Article 995 order recognises 'Affidavits of No Opposition filed' as an alternative to a hearing. LegalEase cannot prepare, complete or sign it.

Where this is filed

- Venue: The court with trial jurisdiction over the misdemeanour conviction in the parish of arrest and conviction, under Article 972.1.

- Destination (clerk): Clerk of court for the parish

- File the Article 994 interim motion with the proposed Article 995 order. Article 985.1(C) applies the Article 979 et seq. procedures and fees, so the clerk serves the district attorney, the Bureau and the arresting agency.

What it costs, and the fee exemption

- Fees: Article 985.1(C) applies the ordinary Article 983 fee provisions, so the five-hundred-fifty-dollar cap applies, collected by the clerk at filing and non-refundable even if the motion is denied.

- Fee waiver: Article 983(F) through the Article 988 Motion for Fee Exemption where its grounds are met.

Notice, objection and service

- Notice and objection: Under Article 980 any entity served under Article 979 may object by filing an affidavit of response, with reasons and with service on the defendant, within sixty days from the date of service of the motion. Since 1 August 2015 the Louisiana Bureau of Criminal Identification and Information is on the same sixty-day period as everyone else. Article 980(C) lets the court grant one extension of not more than thirty days beyond the original sixty. A timely objection means a contradictory hearing, which the objecting party must ask to have set. Where an Affidavit of No Opposition executed by each named agency is attached to the motion, the Article 991 Order states that no contradictory hearing is required and the motion may be granted ex parte.

- There is no Article 991 Order in this packet, and none is used on this track. The committed record names one here, and that is a slip carried in from a sibling Louisiana track. Article 986 makes the Article 994 Motion and the Article 995 Order the forms to be used on this track, and the same registry's own filing rule says so. The Article 995 order carries its own alternative to a hearing on its face - "Affidavits of No Opposition filed," - which is what the item is describing. Read it against the Article 995 Order enclosed with this packet.

- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

Signing

- Signature: The mover signs the Article 994 Motion in the block for an unrepresented mover. LegalEase leaves the signature and date blank.

- Notarization: none

Fields deliberately left blank (all 6 manual-completion item(s) the record holds)

- Item 1 of 6: The grant-or-deny selection, both denial-reason boxes, the date, the place and the judge's signature on the Article 995 Order. Where: Article 995 Order of Expungement of Interim Arrest Record - the decretal section and the signature block. Why: The order is the court's judgment. The two denial reasons - that the mover was not arrested for a felony, and that the mover was not convicted of a misdemeanour offence - are judicial findings and are never pre-selected.

- Item 2 of 6: Race and gender. Where: Article 994 Motion, defendant information section. Why: Counsel classified race and gender on Articles 989 and 994 as a manual completion item pending a data-protection review.

- Item 3 of 6: The participant's signature and the date of signing. Where: Article 994 Motion, unrepresented-mover signature block. Why: LegalEase never signs for the participant.

- Item 4 of 6: Every certification box and the district attorney's signature on the Article 988 form. Where: Article 988 Motion for Fee Exemption, certification section and signature block. Why: The form assigns the certification to the district attorney or a designee.

- Item 5 of 6: The whole of the Article 990 Affidavit of Response. Where: Not printed in the participant packet; described in the filing instructions only. Why: Article 990 is the responding agency's instrument under Article 980 and is never a participant form.

- Item 6 of 6: The clerk's service of the motion and of the order and judgment. Where: Not printed in the participant packet; described in the filing instructions only. Why: Articles 979 and 982 place service on the clerk of court.

- Sign and date the unrepresented-mover block on the Article 994 motion yourself, after reading it. If you are represented, give the packet to your attorney; the attorney block belongs to counsel and is left blank here.

- Leave the whole decretal section of the Article 995 Order blank: the election between a hearing and Affidavits of No Opposition, the granted-or-denied choice, BOTH reasons for denial, the date, the place, and the signature line above the word JUDGE. Every one of those is the court's, and the two denial reasons are judicial findings.

- Leave the clerk's filed-on stamp, the clerk's certificate of service and the district attorney and Bureau lines of the PLEASE SERVE list blank. Article 979 makes service the clerk's act.

- The Article 990 Affidavit of Response is the responding entity's own instrument. It is not printed in this packet and you never complete it.

Stop self-help and get legal help (all 5 stop conditions the record holds)

- Stop 1 of 5: It is unclear whether the misdemeanour conviction arose out of the original felony arrest.

- Stop 2 of 5: The rap sheet conflates more than one arrest event, so the felony arrest to be expunged cannot be identified unambiguously.

- Stop 3 of 5: Any named agency files an Article 990 affidavit of response objecting to the motion.

- Stop 4 of 5: The court sets a contradictory hearing under Article 980(D).

- Stop 5 of 5: The participant is in hard-labour custody, so Article 975 bars filing.

Hard eligibility boundaries the record states (3 exclusion(s))

- The misdemeanour conviction itself is not expunged by this track. Only the original felony arrest entry is removed from the criminal history; the misdemeanour conviction remains on the record unless it is separately cleared under Article 977.
- A person in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour may not file (Art. 975).
- There is no case-count limitation. Article 985.1(D) expressly permits more than one interim expungement.

Waiting periods (1):

- Interim expungement of the original felony arrest: None. Article 985.1(D) expressly disapples the Article 977(A)(2) five-year and Article 978(A)(2) ten-year time limitations.

The limitations counsel attached to the legal design (all 8)

- Limitation 1 of 8 (packet_instruction): Screen interim expungement on every intake where the arrest charge and conviction charge differ in level. No wait, no cap, and available even where the misdemeanor itself is barred by the sex-offense exclusion.
- Limitation 2 of 8 (packet_instruction): Only the original felony arrest is expunged. The misdemeanour conviction remains unless separately eligible under Art. 977, and the packet must say so plainly.
- Limitation 3 of 8 (participant_question): Capture the original arrest charge rather than the amended charge. On this track the original felony arrest charge is the thing being expunged.
- Limitation 4 of 8 (packet_instruction): Criminal background check within 60 days - Supporting document the participant obtains, required before filing.
- Limitation 5 of 8 (self_help_boundary): Self-help limits: unclear whether the misdemeanor arose out of the felony arrest; multiple arrest events conflated on the rap sheet.
- Limitation 6 of 8 (manual_completion_item): Race and gender fields on Arts. 989 and 994 - Manual completion item, pending data-protection review.
- Limitation 7 of 8 (manual_completion_item): Affidavit of No Opposition and Art. 990 response - Manual completion item, agencies only.
- Limitation 8 of 8 (scope_restriction): Art. 975 hard-labor custody filing bar - Scope restriction.

What the committed record requires these instructions to carry

Sequencing is the deliverable in Louisiana. The instructions carry, in order: order the Right to Review or sheriff's background check and watch its sixty-day life; complete the participant fields of the Article 988 fee exemption and deliver it to the district attorney BEFORE filing, expecting it back within fifteen days; request whichever Article 989 certification letters the chosen eligibility basis needs; file with the clerk with the fee or the returned exemption; the clerk serves the district attorney, the Bureau and the arresting agency under Article 979; agencies have sixty days from service to object under Article 980, extendable once by up to thirty days; an Affidavit of No Opposition from each named agency attached to the motion supports an ex parte grant with no contradictory hearing; if expungement is granted the clerk serves the order and judgment under Article 982. It also carries the Louisiana State Police list of common fatal errors: wrong arrest date, using the amended charge instead of the original arrest charge, omitting counts, putting misdemeanours and felonies in the wrong section, missing dispositions or certifications, and choosing the wrong eligibility basis. On this track the instructions make two things explicit: this motion clears only the original felony arrest entry, and the misdemeanour conviction stays on the record unless it is separately cleared under Article 977; and the route remains open where Article 977 is closed by the sex-offence exclusion, has no waiting period, and has no numerical cap.

What the committed record says about the Article 995 order itself

The Article 995 Order of Expungement of Interim Arrest Record - the proposed final order the mover files with the motion, exactly as Articles 991 and 992 accompany the Article 989 motion. It orders the Bureau to expunge the entry of the named felony charges from the criminal history and orders the clerk, district attorney and arresting agency to expunge them from public indices. LegalEase supplies the caption and the felony charge identifiers only; the grant-or-deny selection, the two denial-reason boxes - that the mover was not arrested for a felony, and that the mover was not convicted of a misdemeanour offence - and the date, place and judge's signature are all left blank. Retained by Edition 1.1 as a source-gated asset. Output strategy corrected to custom_pleading by rcap-la-arts-993-995-998-output-strategy-memo-correction, against the adjudication at rcap-la-arts-993-995-998-html-source-output-strategy-adjudication. There is no official PDF of this article: the Legislature publishes the controlling text as HTML on its own article page, and the retained capture is a browser print of that page rather than an issuer publication, so official_pdf_fill can only resolve to a missing source. process_guidance is equally wrong, because a participant submission exists on this component. The article remains the authority and the source identity, which is why officialFormId and officialSourceUrl are kept. Article 986(A) makes the statutory forms exclusive, so the rendering must reproduce the Legislature's own words rather than paraphrase them, and under Article 986(C) the court name is the only authorized variation. The Louisiana Supreme Court's local city and parish packet is not a statewide substitute and must not be used as one. No template exists yet, none is counsel-approved, and no implementation is authorized here. The judicial boundary is unchanged by the strategy and is the controlling constraint on any template: the judge signs, so the rendering carries no signature label at all, and every decretal election, the granted-or-denied choice, both reasons-for-denial boxes, the date, the place and the judge's signature must render blank. LegalEase supplies the caption and the felony charge identifiers and nothing else.

What the record does not settle (3 open question(s))

- Articles 987, 988, 989, 991, 992 and 994 - the Article 986 mandatory forms on which every Louisiana motion track depends - are retained by no Master Library Edition 1.1 asset. Edition 1.1 holds the Louisiana statutory text only for Articles 990, 993, 995, 998 and 999.1, and the repository holds Articles 987 through 994 solely as generic legis.la.gov browser-print HTML captures, which the edition does not treat as workflow documents. Confirm the canonical source form for each and adopt them in a successor edition before any Louisiana packet is released. (impact: release_blocker; affects: correct_form)

- Whether the Article 989 ex parte route through an Affidavit of No Opposition is practically obtainable, and what the district attorney, the Bureau and the arresting agency each require before executing one. This determines whether a Louisiana packet ordinarily avoids a hearing. (impact: nonblocking_research_note; affects: participant_instructions)

- Title XXXIV was amended three times in the 2024 Regular Session - Acts 270 (Articles 972 and 983(G); enacting 999 and 999.1), 560 (enacting 985.3) and 580 (Article 978) - after the reviewed source notes, which ran through 2023. No 2025 or 2026 session amendment to Title XXXIV was located. Louisiana needs the scheduled annual re-verification the review recommended, on the same footing as Kansas. (impact: nonblocking_research_note; affects: governing_mechanism)

What this packet is not

This built packet is review evidence. It is pending independent completeness verification, raster acceptance, visual review and counsel review. It is not approved for live use, it opens no route, and it is not legal advice.

Filing instructions - Interim Motion to Expunge a Felony Arrest from Criminal History (La. C.Cr.P. art. 985.1)

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

This motion clears ONLY the entry of the original FELONY ARREST from the criminal history. The misdemeanor conviction that arose out of that arrest is not expunged by it and stays on the record unless it is separately cleared under Article 977.

- Filing: File the Article 994 Motion for Interim Expungement with the proposed Article 995 Order of Expungement of Interim Arrest Record with the clerk of court. Article 985.1(C) applies the procedures of Article 979 et seq. Article 986 makes Articles 994 and 995 the forms to be used.

- Where: Clerk of court for the parish. File the Article 994 interim motion with the proposed Article 995 order. Article 985.1(C) applies the Article 979 et seq. procedures and fees, so the clerk serves the district attorney, the Bureau and the arresting agency.

- Venue: The court with trial jurisdiction over the misdemeanor conviction in the parish of arrest and conviction, under Article 972.1.

- What the registry says about filing: File the Article 994 Motion for Interim Expungement with the proposed Article 995 Order of Expungement of Interim Arrest Record with the clerk of court. Article 985.1(C) applies the procedures of Article 979 et seq. Article 986 makes Articles 994 and 995 the forms to be used.

- What it costs: Article 985.1(C) applies the ordinary Article 983 fee provisions, so the five-hundred-fifty-dollar cap applies, collected by the clerk at filing and non-refundable even if the motion is denied.

- Fee exemption: Article 983(F) through the Article 988 Motion for Fee Exemption where its grounds are met.

- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

The order of operations the committed record fixes

Sequencing is the deliverable in Louisiana. The instructions carry, in order: order the Right to Review or sheriff's background check and watch its sixty-day life; complete the participant fields of the Article 988 fee exemption and deliver it to the district attorney BEFORE filing, expecting it back within fifteen days; request whichever Article 989 certification letters the chosen eligibility basis needs; file with the clerk with the fee or the returned exemption; the clerk serves the district attorney, the Bureau and the arresting agency under Article 979; agencies have sixty days from service to object under Article 980, extendable once by up to thirty days; an Affidavit of No Opposition from each named agency attached to the motion supports an ex parte grant with no contradictory hearing; if expungement is granted the clerk serves the order and judgment under Article 982. It also carries the Louisiana State Police list of common fatal errors: wrong arrest date, using the amended charge instead of the original arrest charge, omitting counts, putting misdemeanours and felonies in the wrong section, missing dispositions or certifications, and choosing the wrong eligibility basis. On this track the instructions make two things explicit: this motion clears only the original felony arrest entry, and the misdemeanour conviction stays on the record unless it is separately cleared under Article 977; and the route remains open where Article 977 is closed by the sex-offence exclusion, has no waiting period, and has no numerical cap.

Packet set: la-985-1-interim-expungement-set